

Judgment Sheet

IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN.

(JUDICIAL DEPARTMENT)

I.C.A No.20/2018

Muhammad Uzair Aslam etc.

Vs.

Government of Pakistan etc.

JUDGMENT

Date of Hearing	01.12.2022
For Appellants	M/s Rana Muhammad Asif Saeed and Abdul Samad Ali, Advocates.
For Respondents	M/s Saleem Akhtar Warraich, Aamir Aziz Qazi, Advocates and Muhammad Riaz Kamlana, Legal Advisor for NTS. Malik Altaf Hussain, Assistant Advocate General.

MUHAMMAD RAZA QURESHI, J. This Intra Court Appeal under Section 3 of the Law Reforms Ordinance, 1972 calls into question *vires* and legality of Order dated 15.11.2017 passed by learned Single Judge, pursuant whereto Writ Petition along with connected matters filed by the Appellants were dismissed.

2. Since common question of law arising out of same controversy is involved, therefore, along with instant Appeal, Intra Court Appeals bearing No.17, 18, 19, 368 and 445 of 2018 and 41 of 2017 are also adjudicated and decided.

3. The question of law canvassed in instant as well as connected Appeals seeking determination is whether before issuance of appointment letter the scrapping or cancellation of the recruitment process creates any vested right in favour of a person who participated in the recruitment process?

4. The expectation of the Appellants seeking determination of said question of law culminating into Impugned Order emanates from initiation of recruitment process on 11.01.2015 by Multan Electric Power Company (“MEPCO”), wherein pursuant to advertisement in newspaper, the Appellants applied for the post of Assistant Lineman (BS-05) on the basis of open merit as well as on employees’ son quota.

5. Initially, Appellants qualified in written examination and a list for interview of candidates qualifying the written examination was issued. The Appellants claimed that they had cleared the interview process and their respective appointment letters were due when the MEPCO authorities through publication in newspaper dated 21.01.2017 scrapped the recruitment process.

6. The reasoning and grounds for abandoning the recruitment process initiated by the MEPCO authorities were rooted into Recruitment Policy introduced by the Federal Government through Notification bearing No.F-53/1/2008/SP dated 03.03.2015 and since the post of Assistant Lineman was upgraded to BS-07, therefore, the candidates were required to qualify written test in certain subjects and skill test required for the subject matter post after clearing screening test to fill in the vacant post by an independent examination agency.

7. Being disgruntled with the cancellation and scrapping of the recruitment process initiated by MEPCO authorities, the Appellants filed their respective Writ Petitions, *inter alia*, praying for a declaration of Public Notice dated 21.01.2017 as void, illegal and unlawful and simultaneously sought a direction to MEPCO authorities for issuance of appointment letters to the Appellants who claimed to have qualified the written test as well as interview during the initial process of recruitment for the subject matter posts.

8. At this juncture, it is noteworthy from the record that although the lists including the lists of candidates recommended for interview; schedule for interview; and list of candidates selected as

Assistant Lineman in MEPCO are annexed with the Writ Petitions, but their authenticity is denied as the same are neither numbered nor bear any signatures of an officer identifying whether the said lists were ever issued by MEPCO authorities.

9. Be that as it may, the Writ Petitions filed by the Appellants were dismissed through Impugned Order. Learned counsel representing the Appellants have re-agitated the grounds crafted in their respective Intra Court Appeals by contending that the Appellants had cleared the written test undertaken through National Testing Service (“NTS”) and upon issuance of call letters for interview by the MEPCO authorities, the Appellants having qualified in the interview were declared to be successful candidates for the subject matter post of Assistant Lineman (BS-05). Therefore, the public notice for scrapping and cancelling the recruitment process is arbitrary, illegal and unlawful. According to learned counsel for the Appellants, since the Appellants had appeared in written test through NTS, therefore, the criteria of Federal Government’s Recruitment Policy dated 03.03.2015 already stood satisfied and therefore, the cancellation of recruitment process was illegal and unlawful.

10. Conversely, learned counsel for the Respondents MEPCO contends that no vested right had accrued in favour of the Appellants as the process of recruitment for the post of Assistant Lineman (BS-05) had not finalized. According to learned counsel, the initial process of recruitment for the subject matter post was initiated on 11.01.2015, whereas, the Notification for Recruitment Policy by Federal Government was issued on 03.03.2015 and post of Assistant Lineman was upgraded to BS-07. Therefore, it was mandatory for the MEPCO authorities to reinitiate the recruitment process, which may have satisfied the criteria laid down by the Recruitment Policy, therefore, it was imperative for the MEPCO authorities to scrap and cancel the recruitment process which had not attained finality. According to learned counsel, lists annexed with the Writ Petitions cannot be verified by MEPCO authorities as

the same neither bear any official number nor seal of the company is affixed thereon. Additionally, learned counsel contends that MEPCO through two connected ICAs has also challenged the findings contained in paragraph 10 of the Impugned Order and the same is liable to be set aside by this Court.

11. The arguments of learned counsel for the parties have been heard and upon perusal of the record with their able assistance, it appears that the recruitment process for various posts including post of Assistant Lineman (BS-05) was initiated by the MEPCO authorities on 11.01.2015 through publication of advertisement. The said recruitment process was abandoned pursuant to Recruitment Policy issued by the Federal Government on 03.03.2015, which laid down criteria by introducing mechanism for recruitments and stipulating certain additional criterias for selection of candidates for evaluating their ability to perform at any post.

12. Since the policy of Federal Government was targeted to transparency and promoting a meaningful criteria for selection of candidates, therefore, MEPCO authorities were well within their rights to adopt the same. Although the Appellants as well as other candidates who applied for the subject matter posts had appeared in the written examination and qualified for interview and as per their claim they had cleared interview as well, yet in terms of law a decisive step culminating into an enforceable right accrues only if the selection committee or board approves the list of final candidates and an appointment letter is issued.

13. In the instant case, though the Appellants were considered eligible in the written test leading to qualify for interview or even having passed the interview, but no decisive steps were yet taken by the MEPCO authorities through approval of their names by the selection committee or issuance of appointment letters to the Appellants when the whole recruitment process was forestalled.

14. The scrapping or abandonment of recruitment process cannot be termed by the Appellants as *malafide*, arbitrary or capricious as passing the written test and qualifying in interview do not create a vested right in their favour as it did not attain the stage of finale of the recruitment process. Under the law, the right to employ an employee vests with the employer, who till a decisive step is taken, has a discretion to scrap the recruitment process before its finalization and prospective employee interested in the employment cannot claim that the employer be directed to comply with the recruitment process as his vested right has accrued. Therefore, it is difficult to sustain a prayer contained in the Writ Petitions of the Appellants as mere passing of written examination and selection in interview would not by itself vest Appellants with the fundamental right for enforcement as such in the exercise of Constitutional jurisdiction of this Court, unless the competent authority had approved such selection through issuance of appointment letters. Therefore, learned Single Judge rightly and lawfully refused to issue a writ of *mandamus* of the nature prayed for by the Appellants. Reliance in this regard is placed on **2005 SCMR 534** titled “*Secretary Finance and others versus Ghulam Safdar*” and **2019 PLC (C.S) 1345** titled “*Saifullah versus Inspector General, Punjab Police, Lahore and 21 others*”.

15. So far as lists annexed with the Writ Petitions relating to candidates qualified for interview and candidates who passed interview are concerned, the veracity of these lists is subject to verification as it neither bears signatures nor seal of MEPCO authorities, but it is needless to mention that the process of recruitment did not complete here. The candidates had to undergo further process i.e. process of verification of degrees and their respective qualifications and last but not least approval of their appointments by the competent authority leading to issuance of appointment letters.

16. As has been discussed above, there is nothing on record to exhibit that competent authority of MEPCO had approved

appointment of the Appellants for the subject matter posts as process of recruitment had not finalized by the competent authority or selection board by evaluating the testimonials and antecedents of each candidate in accordance with the prescribed benchmarks. During the progress of recruitment process, a re-designation of post or re-determining the criteria according to ambit and scope of executive policy is domain of MEPCO authorities only, which, cannot be interfered with unless *malafide* in law or an illegality is pointed out.

17. It must be borne in mind that in legal parlance, the term “vested right” is an expression that completely and definitely belongs to a person that it cannot be impaired or taken away without person’s consent and is independent of any contingency and is absolute, complete and unconditional. A mere expectancy of future benefits or contingent interest does not constitute a vested right and once a right matures into enforceable legal right under the law, the same cannot be taken away arbitrarily capriciously and in a *malafide* manner. Since the subject matter recruitment process had not yet reached to a decisive step either through recommendations by selection board or through issuance of appointment letters, therefore, it is held that Appellants cannot claim a vested right for appointment at the subject matter post merely by passing the written examination or qualifying in interview. Therefore, it is declared that passing these two stages in a recruitment process does not vest a candidate with an enforceable fundamental right for appointment. Reliance in this regard is placed upon **2005 SCMR 534** titled “*Secretary Finance and others versus Ghulam Safdar*” and **2022 PLC (C.S) 6** titled “*Government of the Punjab through Secretary Health and 3 others versus Muhammad Kamran Bashir and 6 others*” and **2020 PLC (C.S.) 113** titled “*Ms. Saba versus The Province of Sindh through Secretary and 2 others*”.

18. So far as the challenge put forward by MEPCO through their two connected I.C.As with respect to findings contained in paragraph 10 of the Impugned Order is concerned, we are not

convinced that by extending an equitable discretionary relief to the Appellants, the learned Single Judge through Impugned Order has committed any illegality as a direction for formulation of uniform and fair policy for age relaxation before initiation of fresh recruitment process cannot be termed as unlawful. Rather, the findings would curb a possibility of discrimination.

19. In view of what has been discussed above, we are not persuaded that the Impugned Order is tainted with any illegality or warranting an interference by us. Consequently, instant Intra Court Appeal as well as connected Appeals are declared to be meritless and are accordingly **dismissed** with no order as to cost.

(Muhammad Sajid Mehmood Sethi)
Judge

(Muhammad Raza Qureshi)
Judge

Announced in open Court on 06.12.2022.

Judge

Judge

APPROVED FOR REPORTING.

Judge